

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DWAYNE WILSON,

Plaintiff,

-against-

CITY OF NEW YORK, ALEXANDRA ALCOCER and
"JOHN ROE", fictitious name given to unknown inmate,

Defendants,
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:

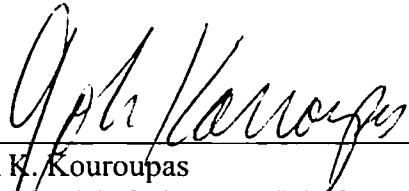
Plaintiff's address

Plaintiff resides at:
800 Concourse Village W.
Bronx, NY 10451
County of Bronx

To the above-named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 29, 2023



John K. Kouroupas
GREENBERG & STEIN, P.C.

Attorney for Plaintiff

DWAYNE WILSON

420 Lexington Avenue, Suite 2450

New York, New York 10170

(212) 681-2535

Our File No. 7467

TO:

CITY OF NEW YORK

1 Centre Street

New York, NY 10007

ALEXANDRA ALCOCER

TAX ID NO.: 974709 SHIELD NO.: 22988

TRANSIT SPECIAL OPERATION UNIT

130 Livingston Street, 3rd Floor

Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
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DWAYNE WILSON,

Plaintiff,

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CITY OF NEW YORK, ALEXANDRA ALCOCER and
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**VERIFIED
COMPLAINT**

Index No.:

Date Purchased:

Plaintiff, by his attorneys, **GREENBERG & STEIN, P.C.**, complaining of the Defendants, respectfully alleges, upon information and belief:

1. At the time of the commencement of this action, Plaintiff was a resident of the County of Bronx, State of New York.
2. This action falls within one or more of the exemptions set forth in CPLR §1602.
3. The cause of action alleged herein arose in the County of Bronx, State of New York.
4. That on February 17, 2023, and at all times herein mentioned, Defendant **CITY OF NEW YORK** was, and still is, a municipal corporation.
5. That on May 17, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. That on August 23, 2023, Plaintiff **DWAYNE WILSON** appeared for a hearing pursuant to the General Municipal Law 50-H which was held at the offices of the Comptroller of the City of New York or of its designated agent.

7. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

8. On February 17, 2023, and at all times mentioned herein, Defendant **CITY OF NEW YORK** owned the premises known as Transit Bureau District 12, in the State of New York, County of Bronx.

9. On February 17, 2023, and at all times mentioned herein, Plaintiff, **DWAYNE WILSON** was arrested at the Intervale Avenue train station on the number 2 subway when he was taken into custody by Defendant New York City Police Department Officer **ALEXANDRA ALCOCER**. Plaintiff was committed to the custody, care and protection of Defendants **CITY OF NEW YORK** and transported to Transit Bureau District 12, in the State of New York, County of Bronx.

10. On February 17, 2023, and at all times mentioned herein, Defendants **ALEXANDRA ALCOCER** was an employee acting within the scope of her employment with Defendant **CITY OF NEW YORK** within the New York City Police Department.

11. On February 17, 2023, and at all times mentioned herein, Defendant prisoner "**JOHN ROE**" was committed to the custody of Defendants **CITY OF NEW YORK**.

12. Defendant **ALEXANDRA ALCOCER** was acting as an agent for each other Defendant herein and as such each is vicariously liable for the others acts.

13. That on February 17, 2023, while Plaintiff **DWAYNE WILSON** was committed to the custody, care and protection of Defendants **CITY OF NEW YORK** and at 8:45 P.M., on said date, he was assaulted, battered, and was caused to sustain severe and permanent injuries by Defendant prisoner

“JOHN ROE.” The City of New York, including Officer Alexandra Alcocer had the duty to protect plaintiff from attacks by other prisoners but failed to do so. When plaintiff was taken to a local NYPD precinct, believed to be Transit Bureau District 12 by police officer **ALEXANDRA ALCOCER**, plaintiff, was put in a cell adjacent a cell that housed an emotionally disturbed prisoner believed to be Edwin Alcidas who was kicking and screaming. A female prisoner arrived and the officers put Mr. Alcidas in the same cell as plaintiff. Mr. Alcidas then committed multiple assault and batteries on plaintiff because defendants clearly failed to protect plaintiff from known risks of attacks by said prisoner.

14. That prior to February 17, 2023 the **CITY OF NEW YORK** was aware of the violent propensity and threat of prisoner Defendant **“JOHN ROE”** and failed to take adequate and precautionary measures.

15. Prior to February 17, 2023, Defendant **“JOHN ROE”** was known, or should have been known, by **CITY OF NEW YORK** and New York City Police Department to be unruly, vicious and possessed of an assaultive propensity and known to be unruly and to verbally threaten, harass, and/or attack other human beings.

16. Defendant **CITY OF NEW YORK** individually and by and through its agents, servants and/or employees were negligent, careless and reckless in the ownership, operation, maintenance, design, control, supervision and/or management of its premises in its negligent, careless and/or reckless hiring, training, supervision, and/or retention of security personnel, their servants, agents, and/or employees; in its wrongful and negligent supervision; hiring and retention of security personnel, their servants, agents and/or employees; in failing to properly supervise and watch the Plaintiff whose whereabouts are perpetually “tracked”; in failing to take the necessary steps and precautions to ensure the safety of the Plaintiff; in negligently violating all statutes, regulations, and ordinances made in and provided in like instances; in negligently failing to supervise the inmate population; in not stationing

guards when numerous inmates were being transported without any supervision; in failing to take the necessary precautions and measures which could have and should have ensured the safety of the Plaintiff; in permitting and allowing the Plaintiff to be assaulted, battered and slashed all as a result of the respondent's negligence; in failing to timely and adequately respond to the assault of the Plaintiff who sustained severe and permanent personal injuries; in improperly securing and supervising the prisoner Defendant **"JOHN ROE"**, in failing to take adequate precautions in that they were aware of the violent nature of the Defendant **"JOHN ROE"**, in failing to take adequate measures, in negligently failing to implement, follow and/or adopt reasonable and safety rules and procedures for the guarding of prisoners who were incarcerated; in negligently failing to provide proper rules and guidelines for other prisoners; in negligently failing to provide a safe, secure environment for prisoners; in negligently failing to take further security measures as the New York City Department Of Corrections was aware of the violent propensities of inmate **"JOHN ROE"**; in negligently misclassifying Defendant **"JOHN ROE"** in failing to take into consideration Defendant **"JOHN ROE"** prior history of violence; in failing to take appropriate action when defendants were on notice of inmate Defendant **"JOHN ROE"** prior records and were negligent in the care, custody and control of said inmates; in violating the Department of Corrections rules and regulations regarding maintaining and overseeing prisoners in Court; in negligently hiring, training and supervising its personnel; in failing to comply with its own ruled and guidelines regarding escorting prisoners, supervising prisoners and maintaining prisoners within the custody of the New York State Department of Corrections; in failing to adequately and properly document the dangerous propensity of other prisoners; in failing to properly search inmates; in allowing inmates with weapons; in failing to warn its personnel of such prior episodes of bad and violent acts, and in negligently violating all statutes, rules, ordinances, and regulations made and provided in like instances.

17. That by reason of the aforesaid Plaintiff **DWAYNE WILSON** has been rendered sick, sore, and disabled; was seriously and permanently injured; including but not limited to, multiple and permanent injuries to his face, including the loss of feeling to his left side of face, scarring; emotional distress and other injuries; all with accompanying pain; suffer pain, shock and mental anguish, has had and will require medical treatment medicines and medical expenses; was and will be unable to attend to his usual duties and activities, which resulted from the aforementioned accident. Plaintiff **DWAYNE WILSON** has been caused to incur and will continue to incur expenses for medical care and attention.

18. The aforementioned occurrence took place due to the negligence of the Defendants, their agents, servants, employees and/or licensees, acting within the scope of their authority, within the scope of their employment and in the furtherance of their agency.

19. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the Defendants and their agents, servants, employees and/or licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff to be physically restrained and unable to defend himself and therefore cased to be willfully, maliciously and with gross negligence physically assaulted, battered, and slashed.

20. No negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

21. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the Defendants and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

**AS AND FOR A FIRST CAUSE OF ACTION FOR DEPRIVATION OF FEDERAL RIGHTS
UNDER 24 U.S.C. §1983**

22. Plaintiff repeats, re-alleges and reiterates each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

23. That on or about February 17, 2023 the Defendant **CITY OF NEW YORK**, its agents, servants and/or employees to wit, Defendant **ALEXANDRA ALCOCER** conspired to and did violate the civil rights and civil liberties of the Plaintiff c in violation of Title 42 U.S.C § 1981 & 1983 *et seq.*, the United States Constitution and Bill of Rights, and the New York State Constitution.

24. That the violation of the Plaintiff **DWAYNE WILSON** civil rights resulted from the failure to prevent the assault and wrongful acts by the Defendant “**JOHN ROE**”, to wit, Defendants **ALEXANDRA ALCOCER** allowed another inmate to assault Plaintiff **DWAYNE WILSON**, and failed to intervene in violation of the Title 42 U.S.C. §1983 and §1981 *et seq.*, the United States Constitution and Bill of Rights.

25. That on or about February 17, 2023, Defendant **CITY OF NEW YORK**, its agents, servants and/or employees to wit, Defendant **ALEXANDRA ALCOCER**, did violate the civil rights and civil liberties of the Plaintiff **DWAYNE WILSON** in violation of Title 42 U.S.C §1983 and §1981 *et seq.*, the United States Constitution and Bill of Rights.

26. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as correction officers with all the actual and/or apparent authority attendant thereto.

27. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as correction officers, pursuant to the customs, usages, practices, procedures and rules of the **CITY OF NEW YORK** and the New York City Department Of Corrections, all under the supervision of ranking officers of said department.

28. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

29. The acts complained of herein constitute intentional infliction of emotional harm and distress.

30. The above mentioned occurrence, and the results thereof, were caused by the joint, several and concurrent negligence of the Defendants and/or said Defendants' agents, servants, employees and/or licensees in the operation, management, maintenance, supervision and control of the aforesaid prison/jail; and in being otherwise negligent and careless.

31. Because of the above stated premises, Plaintiff was caused to sustain serious injuries and to have suffered pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and Plaintiff has and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

32. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society. That as a result of the foregoing, Plaintiff **DWAYNE WILSON** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
December 29, 2023



John K. Kouroupas
GREENBERG & STEIN, P.C.
Attorney for Plaintiff
DWAYNE WILSON
420 Lexington Avenue, Suite 2450
New York, New York 10170
(212) 681-2535
Our File No. 7467

ATTORNEY'S VERIFICATION

JOHN KOUROUPAS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GREENBERG & STEIN, P.C., attorneys of record for Plaintiff, **DWAYNE WILSON**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
December 29, 2023



JOHN KOUROUPAS

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SUMMONS and COMPLAINT

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Attorneys for Plaintiff(s)

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New York, New York 10170

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TO: